



CHAPTER vii

An Act to amend certain financial provisions of the Mersey Tunnel Acts, 1925 to 1955; and for other purposes.

[9th May, 1961.]

WHEREAS by the Mersey Tunnel Act, 1925, the lord mayor, aldermen and citizens of the city of Liverpool and the mayor, aldermen and burgesses of the borough of Birkenhead were authorised to construct a tunnel for vehicular and pedestrian traffic under the river Mersey between the city of Liverpool and the county borough of Birkenhead:

And whereas it is expedient that certain of the financial provisions of the Mersey Tunnel Acts, 1925 to 1955, should be amended as by this Act provided:

And whereas it is expedient that the other provisions of this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and

with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1. This Act may be cited as the Mersey Tunnel Act, 1961, and the Mersey Tunnel Acts, 1925 to 1955, and this Act may be together cited as the Mersey Tunnel Acts, 1925 to 1961.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires, the following expressions have the following meanings:—

“ Act of 1933 ” means the Mersey Tunnel Act, 1933;

“ Act of 1949 ” means the Mersey Tunnel Act, 1949;

“ Act of 1955 ” means the Mersey Tunnel Act, 1955;

“ Birkenhead Corporation ” means the mayor, aldermen and burgesses of the county borough of Birkenhead acting by the council of the borough;

“ Liverpool Corporation ” means the lord mayor, aldermen and citizens of the city of Liverpool acting by the council of the city;

“ Corporations ” means the Liverpool Corporation and the Birkenhead Corporation;

“ Joint Committee ” means the Mersey Tunnel Joint Committee incorporated by the Mersey Tunnel Act, 1925.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

Amendment
of section 10
of Act of 1933.

3.—(1) Section 10 (Renewals fund) of the Act of 1933, as amended by section 8 (Amendment of section 10 of Act of 1933) of the Act of 1949 and section 6 (Amendment of section 10 of Act of 1933) of the Act of 1955, shall have effect as if the words “ one million five hundred thousand pounds ” were substituted for the words “ one million pounds ”.

(2) The provisions of subsection (1) of this section shall be deemed to have had effect from the first day of April, nineteen hundred and sixty.

Amendment
of section 11
of Act of 1933.

4.—(1) Section 11 (Reserve fund) of the Act of 1933, as amended by section 9 (Amendment of section 11 of Act of 1933) of the Act of 1949 and section 7 (Amendment of section 11 of Act of 1933) of the Act of 1955, shall have effect as if the words “ seven hundred and fifty thousand pounds ” were substituted for the words “ five hundred thousand pounds ”.

(2) The provisions of subsection (1) of this section shall be deemed to have had effect from the first day of April, nineteen hundred and sixty.

5. The Liverpool Corporation, for and on behalf of the Corporations, or for and on behalf of the Joint Committee, may (in addition to any moneys which they are now authorised to borrow or which they may hereafter be authorised to borrow) borrow, at interest, without the consent of any sanctioning authority the sum requisite for the payment of the costs, charges and expenses of this Act, and all moneys so borrowed shall be chargeable on the “revenues of the Corporation” as defined by the Liverpool Corporation Act, 1921, and shall be repaid, within such period as the Corporations may determine, not exceeding five years from the passing of this Act.

Power to
Liverpool
Corporation
to borrow and
repayment of
borrowed
moneys.

6. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act, as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons, shall be paid by the Joint Committee out of revenue or out of their reserve fund in such amounts as the Joint Committee shall determine or out of moneys to be borrowed by the Liverpool Corporation for the purposes of this Act.

Costs of Act.

Table of Statutes referred to in this Act

Short title				Session and chapter
Liverpool Corporation Act, 1921	...	...	...	11 & 12 Geo. 5 c. lxxiv.
Mersey Tunnel Act, 1925	...	...	...	15 & 16 Geo. 5 c. cx.
Local Government Act, 1933	...	...	...	23 & 24 Geo. 5 c. 51.
Mersey Tunnel Act, 1933	...	...	...	23 & 24 Geo. 5 c. xxxix.
Mersey Tunnel Act, 1949	...	...	...	12 & 13 Geo. 6 c. xxxii.
Mersey Tunnel Act, 1955	...	...	...	3 & 4 Eliz. 2 c. vii.

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN ENGLAND

Mersey Tunnel Act, 1961

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